

Online Complaint Form



COMPLAINT ABOUT A CALIFORNIA JUDGE, COURT COMMISSIONER OR REFEREE

Confidential under California Constitution Article VI, Section 18, and Commission Rule 102

For instructions on filling out and submitting this form, please visit the commission's [Online Complaint Instructions webpage](#).

Date Submitted
7/23/2024 8:51 AM

Entry Number
8,059

* Indicates a required field

Your information

Complainant 1

Your name
Kostiantyn Mars

Your pronouns (e.g., he/him; she/her; they/them)

Your email
constantine.mars@gmail.com

Your telephone number
(408) 518-0088

Your address
PO Box 8081, San Jose, California 95155

Judge and conduct

Judge 1

Name of judge
Stephen Lowney

Or Name of court commissioner or referee

Court Level
Superior Court

Court of Appeal District

County
Santa Clara

Type of court case

Family Law

Case name

Dissolution of Family Mars

Case number

22FL003144

Your relationship to the case

Litigant/Family/Friend

Date or dates conduct occurred

03/11/2024

Please specify what action or behavior of the judge, court commissioner or referee is the basis of your complaint. Provide relevant dates and the names of others present. (Attach additional pages if necessary.)*

Complaint

03/11/2024, while being in disqualification process since 02/20/2024, suspected of bribery disqualified crook ("judicial officer") Stephen Lowney, without any hearing, covertly signed retaliatory Vexatious Litigant prefiling order against me, in retaliation for Statement of Disqualification that I filed and served against him 02/20/2024.

03/11/2024 I was in process of filing Statement of Disqualification Amended against suspected of bribery disqualified crook Stephen Lowney, when clerk of the court notified me that I just was ordered to become Vexatious Litigant - and clerk will not accept Evidence for Statement of Disqualification Amended to filing, because starting this very moment all filings should go through approval of Presiding Judge.

I respectfully attach Statement of Disqualification Amended 03/11/2024 with Evidence list, previous Statement of Disqualification 02/20/2024, and retaliatory Vexatious Litigant order signed by Stephen Lowney covertly 03/11/2024.

Attached order is invalid by it's nature, because it was signed by disqualified judicial officer who was in disqualification process since 02/20/2024, and who demonstrated impermissible conflict of interest with me, Petitioner on this case,, and clearly stated intentions to "punish" me by vexatious litigant restraining order and contempt if I will not "comply" with his threats to put me in jail and silence me with vexatious litigant order to force me to abandon my son Max Mars and give up passport and all documents of my son to Nancy Roberts, who is suspected in bribing Lowney on his very first month of assignment in department 79.

I respectfully remind that just a month before, on 02/07/2024 I respectfully requested Lowney to hear matter of opposing DVROs (about beating my son Max Mars on his birthday 11/13/2023), to set aside harmful custody orders 06/29/2023 obtained by fraud on court committed by his disqualified predecessor Andrea Flint removed from court in December 2023, and to hear custody review and Child Abduction Prevention matter (together with 39 supervised reports and video evidence, filed with the court for trial 02/07/2024).

Instead of hearing those crucial custody-related matters, disqualified bribed crook Lowney refused to hear those matters, denied most, and threatened to put me in jail through fabricated contempt and silence me with vexatious litigant prefiling order - TO FORCE ME TO ABANDON MY SON MAX MARS, AND GIVE UP PASSPORT AND ALL DOCUMENTS OF MY SON TO NANCY ROBERTS AND HER CLIENT, THEREFORE FACILITATING INTERNATIONAL CHILD ABDUCTION OF MY SON MAX MARS OUTSIDE OF THE UNITED STATES TO UKRAINE IN TIMES OF WAR.

RESPECTFULLY,

COURT ORDERS SHOULD NOT BE USED BY JUDICIAL OFFICER FOR PERSONAL RETALIATION, THREATS OR COERCION.

JUDICIAL OFFICER MUST BE IMPARTIAL - AND BOTH CODE OF CIVIL PROCEDURES AND CANONS OF JUDICIAL ETHICS STATE CLEARLY THAT JUDICIAL OFFICER MUST RECUSE THEMSELVES IN CASE IF A REASONABLE PERSON MAY DOUBT IMPARTIALITY.

DISQUALIFICATION PROCEDURE IS NOT A "OFFENSE". IT IS THE STANDARD COURT PROCEDURE, USED TO TRANSFER CASE WITH THE HELP OF PRESIDING JUDGE TO ANOTHER JUDGE, IN CASE IF CURRENTLY ASSIGNED JUDGE IS BIASED OR HAS IMPERMISSIBLE CONFLICT OF INTEREST AND REFUSES TO RECUSE THEMSELVES.

WITH THAT SAID, STEPHEN LONEY HAS OBVIOUS AND UNDENIABLE IMPERMISSIBLE CONFLICT OF INTEREST, AND WAS SERVED ALREADY TWO STATEMENTS OF DISQUALIFICATION (02/20/2024, 03/11/2024) - BUT REFUSED TO COMPLY WITH DISQUALIFICATION PROCEDURES DESCRIBED IN CCP 170.3 AND 170.4, AND INSTEAD CONTINUES TO STAY ON THE CASE AND SIGN NEW INTENTIONALLY HARMFUL RETALIATORY ORDERS.

AND EVEN WORSE - BY UNLAWFULLY ABUSING VEXATIOUS LITIGANT PREFILING ORDER, LONEY OBTAINED UNFAIR ADVANTAGE OF "SILENCING ME" AND BLOCKING MY CONSTITUTIONAL RIGHT OF SELF-REPRESENTATION IN THE COURT - BECAUSE ANY FILING STARTING THIS MOMENT COULD BE REJECTED FROM FILING (WHICH ALREADY HAPPENED MULTIPLE TIMES), AND THEREFORE COURT PROCESS IS SO SIGNIFICANTLY IMPAIRED BY FRAUD ON COURT COMMITTED BY LONEY, THAT IT IS IMPOSSIBLE TO CONTINUE CASE WITHOUT REMOVAL OF BOTH LONEY AND NANCY ROBERTS - AND PROBABLY TRANSFER OF CASE TO ANOTHER COURT.

ULTIMATELY, LONEY TURNED CASE INTO SUCH STATE WHEN NULLIFICATION OF ALL ORDERS OF LONEY AND HIS DISQUALIFIED PREDECESSORS IS MANDATORY.

It is also documented in attached Statement of Disqualification dated 02/20/2024, Statement of Disqualification Amended 03/11/2024, and multiple previous complaints to Commission on Judicial Performance, that disqualified bribed crook Loney directly threatened me by jail through fabricated contempt and to silence me with vexatious litigant order - including documented by audio recording and transcript of hearing 02/07/2024, when Loney committed massive severe repetitive fraud on court and threatened me in attempt to force me to abandon my son and give up passport and all documents of my son to Nancy Roberts and her client (who was beating my son on his birthday 11/23/2023, and threatened to "bury our son in Ukrainian soil, so you will never see him again").

Dear Commission on Judicial Performance and Chief Justice Patricia Guerrero,
I respectfully ask you for help to OFFICIALLY DISQUALIFY, REMOVE FROM COURT, AND NULLIFY ALL ORDERS OF THREE DISQUALIFIED CROOKS ("JUDICIAL OFFICERS") STEPHEN LONEY, ANDREA FLINT, AND JAMES TOWERY - RETROACTIVELY BACK TO 09/13/2022, INCLUDING RETALIATORY VEXATIOUS LITIGANT PREFILING ORDER SIGNED BY LONEY 03/11/2024 IN RETALIATION TO ME FILING STATEMENTS OF DISQUALIFICATION AGAINST LONEY ON 02/20/2024 AND 03/11/2024.

Appreciate your prompt attention to this urgent matter and help with restoring integrity of the court process.
Thank you

File Upload

Evidence for Complaint 2024-03-11 - Retaliatory Vexatious Litigant Order.pdf

2024-03-11 [Lowney] Vexatious Litigant order against me.pdf

2024-02-20 Disqualification against Lowney.pdf

2024-03-11 Disqualification against Lowney Amended (printed).pdf